THE STATE RESTS ITS CASE

(Continued from Page One)

S. Barnett was recalled by the defense this afternoon for recross examination. He was asked if he did not tell Milt Osler of Macedonia that he was not sure that it was the day following the murder that Kelly told him of the Moore murder. He denied that he told Osler any such thing and also denied that he told Mac Maynes, Macedonia barber, that he did not know anything about the murder except what he heard people talk. Osler testified for the defense at the last trial.

J. H. Taggart, Clarinda architect, again offered in evidence the plat he made of the Moore home and sursoundings.

Monday forenoon's session was taken up entirely by reading from the evidence given at the former trial. Court reporter McGlothen went over the testimony of Mr. and Mrs. J. A. Anthony of Macedonia and Attorney Olmstead of Winner, S. D. This evidence had to do with the actions of the preacher, which the state call significant, at Macedonia and Winner.

Testimony offered by W. O. McQueen, Julius Wold and Eugene Riley, officials of Sioux Falls, S. D.,where Kelly was incarcerated on a charge of sending obscene literature through the mails, was read to the jury by County Attorney Oscar Wenstrand.

Evidence given in September by Dr. H. H. Schultz and L. K. Strate of Sutton, Neb., was also read by the attorney This had to do with Kelly's strange actions in the Nebraska town.

The preacher's behavior while in jail at Sioux Falls was shown from transcript of the testimony of Amos E. Myers, cellmate of Kelly. The evidence of Rev. O. C. Carden, to whom Kelly once talked of the Villisca murders, was the last read.

To prevent any evidence concerning the alleged confession of Kelly at Logan reaching the jury, Attorney Mitchell and Attorney General Havner stood behind County Attorney Wenstrand while he read and running ahead of him down the page, struck out those parts which had to do vith the events at Logan. Any part over which there was dispute was referred to the judge, who reviewed the part of the transcript in question and ruled on it before Wenstrand was allowed to read any portion of it to the jury.

Attorneys Clash

Attorneys engaged in a clash Friday afternoon of such seriousness that Judge Wheeler threatened to fine them if such actions were even approximated again. The clash came during the cross examination of Samuel Barnett of Macedonia by Attorney W. E. Mitchell of Council Bluffs. Barnett had testified that Kelly had told him of the Villisca murders in Macedonia on the morning of June 10, at a time earlier than their discovery in Villisca. During his questioning by Mitchell Barnett was not sure of his ground and at times contradicted former points in his evidence. He was unable to reconcile certain events and became so confused that attorneys for the state broke into the cross examination in an attempt to help their witness. Attorney Mitchell resented this and said so in no uncertain terms. The talk became heated, Attorney General Havner, Attorney Shirley Gillilland of Glenwood and Attorney J. J. Hess of Council Bluffs taking up the side of the state. Then the attorney general and the Glenwood lawyer dropped out and the two Council Bluffs attorneys hurled defies across the table until Judge Wheeler made his gavel heard above the loud words and threatened a fine.

But one witness other than Barnett was on the stand during the afternoon Friday. He was J. A. Fritch of Macedonia, implement dealer, who testified that Kelly related details of the Moore crime to him early on the morning following the murder, while in Macedonia.

F. M. McGlothen, court reporter at the first trial, Friday afternoon read the transcript of the testimony of Mr. and Mrs. William Simons, who swore that they heard Kelly tell of the Villisca crime while on the early morning train from Sidney to Carson on a morning early in June. Other evidence was introduced to show that the Simons' made this trip on June 10, the day following the murder.

Saturday Forenoon

Court adjourned Saturday noon until Monday morning. Eleven witnesses were heard Saturday forenoon, including Grant Pilling, of Macedonia, one of the new witnesses. The others all testified at the first trial and their evidence did not vary in any vital particular from that previously given. They were: Mrs. W. C. Miller of Macedonia; H. C. Stevens and wife, Dr. C. W. Spaulding and wife, and G. W. Thomas of Carroll; W. R. Daniels, ticket agent at Sidney; Probation officer H. L. Houghton, Miss Harriet Struck and Mrs. Margaret Dodsley of Sioux City.

FOR SALE—A number of pure bred Single Comb Buff Orpington cockerels, very nice ones, $1.50 each. Tony Miller, Morton Mills. Mutual phone through Grant. N-17,21,24-p.

PLAN PRIVATE DRAINAGE

(Continued from Page One)

drainage ditch that has been petitioned for by land owners just east and northeast of this city, and straightens one of the most crooked portions of the Middle Nodaway river.

It was hoped by Messrs. Woodward, Day, Carlson, Cozad and Loper that the representatives of the contracting companies would be in a position to render a bid on the work while they were in Villisca or a few days later. However, most of the contractors stated Friday that they would be unable to make a bid at the present time. They contended that since the ditch desired took a course through a timberland stretch, the work would be very difficult, and that they were handicapped at this particular time by the loss of experienced dredge boat men in the army draft. If the next draft does not rob them of too many of their remaining experienced men, however, they may bid later on the work.

H. B. Whitney has written the Villisca parties since visiting here Friday, that if he can secure the promise of ample coal he may soon make them a bid that would doubtless be considered with favor.

When accomplished the drainage ditch will greatly benefit the land of the gentlemen interested in promoting the undertaking.

WIN AT GREENFIELD FRIDAY

(Continued from Page One)

on No. 6, dressed at Creston and then continued to Greenfield. They returned to Villisca Friday evening on No. 9, hilarious over their victory.

Have Had Successful Season

Coach "Bill" Moore and Captain Tommie Stallings and their high school protiges on the football team have had a very successful season this year to date. They have won seven games and lost two, a record that makes their followers at the high school and in the community proud of them. However, they still have two hard games on their schedule and are working hard to keep in the best of condition for the game with Clarinda at Clarinda Friday and the Essex game at Essex on Thanksgiving day. The games and the results to date are as follows:

Villisca 59, Nodaway 0.
Villisca 41, Red Oak 0.
Villisca 0, Corning 34.
Villisca 41, Nodaway 6.
Villisca 19, Elliott 3.
Villisca 36, Clarinda 7.
Villisca 0, Atlantic 13.
Villisca 38, Elliott 0.
Villisca 14, Greenfield 7.

LOCAL NEWS ITEMS

A California Holstein cow has beaten all previous records for butter, yielding 1,331.41 pounds in 365 days.

The workmen and soldiers are running Petrograd. The workmen won't work and the soldiers won't fight; otherwise they are appropriately named.—B. L. T. in Chicago Tribune.

Letters and other epistles from members of Company F state that Captain Casey and Second Lieutenant H. D. Peckham and some of the non-commissioned officers of Company F made the trip from Governor's Island to Philadelphia Saturday to witness the Pennsylvania-Michigan football game. The eastern school won the game by 16 to 0.

Ray White, who is a brother of Mrs. H. A. Glackemeyer of this city and who worked for a time for C. B. Curtis in the Jolliffe jewelry store, is now in the National Army. He was drafted from Greene county and is with Company E, 350th Infantry. Monday Mr. White expected to be transferred from Camp Dodge near Des Moines to Fort Pike in the South.

J. W. Davidson left Friday for Flemington, Missouri, to attend to business matters. Mr. Davidson had been in Missouri previously and had made an offer to a party on a 160 acre tract of land. He expected to close the deal this time. The land is located two miles from Flemington, Missouri, and Mr. Davidson expects to move to that place next spring.

Albert F. Davie recently sold the property on West First street belonging to E. L. Benedict & Company of Clarinda to his father, W. G. Davie. The latter is having the same improved—it will be remembered that the house was partially burned while W. F. Fetrow resided there—and will soon have the residence, which he plans to lease, ready for occupancy.

Jenkins & Peters, who have the Ford agency in this territory, have been notified by the company that they will not be allowed to receive more than 60 per cent of their original allotment for this year. In fact it begins to look as if new Ford cars are not going to be as numerous any place this season as they have been in the past, and if Uncle Henry continues to turn over more and more of his plant to the manufacture of war machinery needed by the government, it will put a crimp in the Ford car business for some time to come.

We just received a manufacturer's sample line of all wool serge dresses, not two alike, in all the wanted shades—worth up to $20.00, for this sale

$12.75

STRAUSS'S

"The Store That Satisfies"

The Price We Quote is Sufficient to tell that You are Saving Money on Every Item.

25c Sale

We suggest to do your Christmas shopping early. A manufacturer's sample line of White Grain French Ivory, extra heavy toilet articles. Come in now and make your selection at

1-3 OFF
Regular Prices

12 1-2c Crochet cotton, white only, 3 to 50, 3 balls for - - 25c
25c Hand Painted Japanese Fancy Baskets, all shapes, 2 for - 25c
20c Heavy standard outing flannels, lights only, 2 yards for - 25c
20c Men's heavy Rockford work soxs, blue and brown, 2 pair for 25c
20c Extra quality 32 in. standard percales, lights only, 2 yards for 25c
20c Full weight, very fine quality cotton bats, 2 for - - - 25c
20c Good size heavy huck towels, plain white, two for - 25c
20c Quality standard apron check ginghams, two yards for - 25c
18c Heavy standard toweling, bleached and unbleached, two yds. for 25c
10c Men's large hemstitched white handkerchiefs, five for - 25c
10c Ladies' very fine lawn embroidery handkerchiefs, five for - 25c
39c Fancy colored stripe bath towels, size 18x38, each - - 25c

Men's Heavy Blue Cheviot work Shirts, 14 1-2 to 17 size

59c

BIG COAT SALE

Ladies' and Misses' Coats

$14.75

Broadcloths
Zibalenes
Wool Velours
Wool Mixture Materials

Worth Up to $20.00

Men's heavy brown stripe bib overalls, while they last-

59c

REVIEW WANT ADS

FOR SALE—Two yearlings and 35 spring boars, pure bred big type Poland Chinas. Also have four double Standard Polled Durham bulls, from seven to ten months old. These bulls are sired by the Scotch red bull, Orange Butterfly. All exceptionally good ones. W. H. Barr & Son. N-3-tf-c

FOR SALE—Thoroughbred Duroc Jersey boars, cholera immune. C. P. Bryson, Villisca, Mutual Phone. N-7,10, 14,17,21,24,28-p.

FOR SALE—Fine Poland China Spring boars, cholera immune. J. W. Kirk, Nodaway mutual phone. N-21, 24,28—D-1-p.

FOR SALE—S. C. R. R. Cockerels, the dark red kind. $1.75 each. Phone 12 on 70. Mrs. Faunnie J.Hansen.N-21-p.

A HANDSOME PROFIT

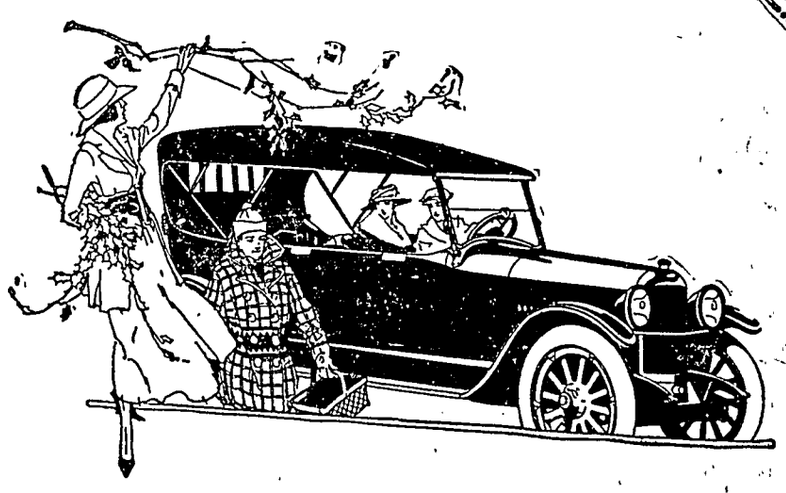
Last week J. L. Himiller sold his splendid farm of eighty acres southeast of Villisca to A. F. Davie of this city for $225 the acre. Mr. Himiller bought this place thirty-six years ago for $37.50 an acre and at that time he states that it was the highest priced farm in the whole country. However, each year that he owned the place it increased in value $5.21 the acre, the farm making him a yearly profit, in enhanced value alone, of over $400.

Mr. Himiller is undecided as to his future location, but states that he and Mrs. Himiller are going to take some time off for a good rest from the daily grind.

YESTERDAY'S MARKETS

No. 2 wheat	$2.00
Oats	.60
Eggs, trade 39, Cash	.38
Butter, produce market	.25
No. 1 country butter, trade	35c to 40c
Spring Chickens	.14
Hens	.14
Cream	.41
Hogs	$16.00 to $16.50

PAIGE
The Most Beautiful Car in America



WE FIRMLY believe that Self-Respect, Comfort and Enduring Satisfaction have an actual market value. So we build these things into our product.

We take just a little more time—just a little more care in selecting materials—just a little more pride in our work. And the result is a *real* motor car—not a makeshift or compromise.

Unless we are greatly mistaken, the Paige "Six-39" is just the kind of car that *you* want. It costs $1330 and it is worth every penny of the price.

Essex "Six-55" 7-passenger $1775; Coupe "Six-55" 4-passenger $2850; Town Car "Six-55" 7-passenger $3230; Sedan "Six-55" 7-passenger $3230; Limousine "Six-55" 4-passenger $1795; Linwood "Six-39" 7-passenger $2850; Brooklands "Six-39" Chummy Roadster $1330; Glendale "Six-39" 5-passenger $1330; Dartmoor "Six-39" 2 or 3-passenger $1330; Sedan "Six-39" 5-passenger $1925. All Prices f. o. b. Detroit.

PAIGE-DETROIT MOTOR CAR COMPANY, DETROIT, MICH.

Fraim & Marshall